EU closes antitrust probe into Dutch rail operator

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EU closes antitrust probe into Dutch rail operator

By Jacob Parry · Nov 12, 2026, 3:04 PM · View in your browser

The European Commission has closed an antitrust investigation into Dutch state-owned rail operator Nederlandse Spoorwegen after it agreed to sell its retired trains to rivals.

The Commission had been concerned NS was preventing competitors from buying trains it no longer used, either by relegating them to a reserve pool or scrapping them.

Under a new policy it published Thursday, the Dutch rail incumbent will offer unused trains for sale through what the Commission called “an open, transparent and non-discriminatory process.”

According to the EU executive, second-hand train stock can give new entrants a cheaper and faster way into the market, since new trains are expensive and take time to deliver.

Brussels plans to propose legislation in 2027 banning the anti-competitive scrapping of working trains.

The Netherlands still faces scrutiny in other EU cases over its treatment of the operator. In June, the Commission warned that Dutch rules giving NS priority access to track capacity may breach EU antitrust law by reinforcing its dominance on international routes.

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